



Lecture 5

State and municipal service

- Definition, principles and responsibilities
- Categories and groups of positions, class ranks
- Competitions for filling positions, personnel reserve



Regulatory legal framework

Federal Law of July 27, 2004 No. 79-

**Federal Law "On the State Civil Service
of the Russian Federation"**

Federal Law of May 27, 2003 No. 58-

**Federal Law "On the Civil Service System of
the Russian Federation"**

Federal Law of March 2, 2007 No. 25-FZ **"On Municipal
Service in the Russian Federation"**

Federal Law of October 6, 2003 No. 131-FZ **"On General
Principles of Local Self-Government in the Russian
Federation"**

Federal Law of April 5, 2013 No. 44-FZ **"On the Contract
System in the Sphere of Procurement of Goods, Works,
and Services to Meet State and Municipal Needs"**

Federal Law of December 25, 2008 No. 273-FZ **"On Combating
Corruption"**



Definition of civil service

The civil service of the Russian Federation is the professional service activity of citizens of the Russian Federation to ensure the execution of powers:

- Russian Federation;
- federal government bodies, other federal government agencies;
- subjects of the Russian Federation;
- state authorities of the constituent entities of the Russian Federation, other state authorities of the constituent entities of the Russian Federation;
- persons holding government positions in the Russian Federation;
- persons holding government positions in the subjects of the Russian Federation
- Federations
- And others...



Persons holding government positions

• **President of**

the Russian Federation • Chairman of the Government of the Russian Federation

and 4 deputies • Federal Minister • Ambassadors and

representatives of the Russian Federation in a foreign state. • Senators of the Federation Council and deputies of the State Duma •

Judges (federal, constitutional, supreme, etc.) • Prosecutor

General and Chairman of the Investigative Committee • Deputy

Chairman and Secretary of the Security Council • Commissioner for Human Rights and for the Protection of Entrepreneurs' Rights. •

The highest official of a constituent entity of the Russian

Federation • Chairman, his deputy and

Auditors of the Accounts Chamber • Chairman of the Central

Bank • Chairman, deputy, secretary and members of the

Central Election Commission • 10 positions of the federal territory "Sirius" • Chairman of the Board of the All-Rus



Principles of the civil service system:

federalism, which ensures the unity of the civil service system and compliance with the constitutional delimitation of jurisdiction and powers between federal government bodies and government bodies of the constituent entities of the Russian Federation;

legality;

the priority of human and civil rights and freedoms, their direct effect, the obligation to recognize, observe and protect them;

equal access of citizens to public service;

the unity of the legal and organizational foundations of the civil service, which implies the legislative consolidation of a unified approach to the organization of the civil service;



Principles of the civil service system:

the relationship between civil service and municipal service;

openness of the civil service and its accessibility to public control, objective information to society about the activities of civil servants;

professionalism and competence of civil servants;

protection of civil servants from unlawful interference in their professional activities by both government bodies and officials, as well as individuals and legal entities.



Types of civil service

Civil



Military



Other





Other types of civil service

Prosecutor's
Office

Investigative Committee of
the Russian Federation

Internal
affairs agencies

Customs
authorities

Criminal executive bodies
systems

Fire
service authorities

And others



State Civil Service of the Russian Federation

a type of civil service that is a professional official activities of citizens of the Russian Federation in civil service positions ensuring the execution of powers of state bodies, persons, holding government positions in the Russian Federation, and persons holding government positions of the constituent entities of the Russian Federation.

Federal State
Civil Service

state civil service of
the constituent entities of
the Russian Federation



Municipal Service of the Russian Federation

Professional activity of citizens, which is carried out on a permanent basis in municipal service positions filled by concluding an employment agreement (contract).

The employer for a municipal employee is the municipality, on behalf of which the powers of the employer are exercised by the representative of the employer (the employer).

The relationship between civil service and municipal service



- 1) the unity of **the basic qualification requirements** for filling civil service positions and municipal service positions;
- 2) the unity **of restrictions and obligations** when performing civil service and municipal service;
- 3) the unity **of requirements for the training of personnel** for the civil service and municipal service and the professional development of civil servants and municipal employees;
- 4) **taking into account the length of service** in municipal service when calculating the length of service in civil service and the length of service in civil service when calculating the length of service in municipal service;
- 5) the correlation of the basic **conditions of remuneration and social guarantees** for civil servants and municipal employees;
- 6) the correlation of the main **conditions of state pension provision** for citizens who performed civil service and citizens who performed municipal service, and their families in the event of the loss of a breadwinner.



Principles of the State Civil Service

1) priority of human and civil rights and freedoms;

2) the unity of the legal and organizational foundations of the federal civil service and the civil service of the constituent entities of the Russian Federation;

3) equal access of citizens who speak the state language of the Russian Federation to civil service and equal conditions for its performance regardless of gender, race, nationality, origin, property and official status, place of residence, attitude to religion, beliefs, membership in public associations, as well as other circumstances not related to the professional qualities of a civil servant;



Principles of the State Civil Service

4) professionalism and competence of civil servants;

5) stability of the civil service;

6) availability of information about civil service;

7) interaction with public associations and citizens;

8) protection of civil servants from unlawful interference in their professional official activities.



Principles of municipal service in the Russian Federation

1) priority of human and civil rights and freedoms;

2) equal access of citizens who speak the official language of the Russian Federation to municipal service and equal conditions for its performance regardless of gender, race, nationality, origin, property and official status, place of residence, attitude to religion, beliefs, membership in public associations, as well as other circumstances not related to the professional and business qualities of a municipal employee;

3) professionalism and competence of municipal employees;

4) stability of municipal service;

5) availability of information on the activities of municipal employees;



Principles of municipal service in the Russian Federation

6) interaction with public associations and citizens;

7) the unity of the basic requirements for municipal service, as well as taking into account historical and other local traditions when performing municipal service;

8) legal and social protection of municipal employees;

9) liability of municipal employees for failure to perform or improper performance of their official duties;

10) non-partisanship of municipal service.



Rights of civil servants

- 1) ensuring appropriate **organizational and technical conditions** necessary for the performance of official duties;
- 2) familiarization with **the job description** and other documents defining his rights and obligations for the civil service position he holds, the criteria for assessing the effectiveness of the performance of job responsibilities, the indicators of the effectiveness of professional service activities and the conditions for career advancement;
- 3) **rest** ensured by establishing normal working hours, providing days off and non-working holidays, as well as annual paid basic and additional vacations;
- 4) **remuneration and other payments** in accordance with this Federal Law, other regulatory legal acts of the Russian Federation and the employment contract;
- 5) receiving, in accordance with the established procedure , **information and materials** necessary for the performance of official duties, as well as **making proposals** for improving the activities of the state body;
- 6) **access** in the established manner **to information** constituting a **state secret**, if the performance of official duties is associated with the use of such information;



Rights of civil servants

7) **access** in accordance with the established procedure in connection with the performance of official duties **to state bodies, local government bodies**, public associations and other organizations;

8) **familiarization with reviews** of his professional service activities and other documents **before they are included in his personal file**, materials of the personal file, as well as the inclusion of his written explanations and other documents and materials in the personal file ;

9) **protection of information** about a civil servant;

10) **career advancement** on a competitive basis;

11) **professional development** in the manner established by this Federal Law and other federal laws;

12) membership in **a trade union**;



Rights of civil servants

13) consideration of **individual official disputes** in accordance with this Federal Law and other federal laws;

14) conducting **an official investigation** based on his application ;

15) **protection of their rights** and legitimate interests in civil service, including appealing their violation in court;

16) **medical insurance** in accordance with Federal Law 79 and the federal law on medical insurance of civil servants of the Russian Federation;

17) state **protection of his life and health**, the life and health of his family members, as well as property belonging to him;

18) state **pension provision** in accordance with federal law.



Duties of civil servants

- 1) **comply with** the Constitution of the Russian Federation, federal constitutional laws, federal laws, other **regulatory legal acts** of the Russian Federation, constitutions (charters), laws and other regulatory legal acts of the constituent entities of the Russian Federation and **ensure their implementation**;
- 2) **perform official duties** in accordance with the job description;
- 3) **carry out the instructions of the relevant managers**, given within the limits of their powers established by the legislation of the Russian Federation;
- 4) **respect the rights and legitimate interests** of citizens and organizations when performing official duties ;
- 5) **comply with the official regulations** of the state body;
- 6) **maintain the professional level** necessary for the proper performance of official duties;
- 7) **not to disclose information** constituting a state or other secret protected by federal law, as well as information that has become known to him in connection with the performance of official duties, including information concerning the private life and health of citizens or affecting their honor and dignity;



Duties of civil servants

8) **protect state property**, including that provided to him for the performance of official duties;

9) **submit**, in the manner prescribed by federal law, **information about themselves and their family members**;

10) **notify** in writing the employer's representative **of the termination of citizenship** of the Russian Federation or the acquisition of citizenship (nationality) of a foreign state or the receipt of a residence permit or other document confirming the right of a citizen to permanent residence in the territory of a foreign state...

11) **comply with restrictions**, fulfill obligations and requirements **for official conduct**, and not violate the prohibitions established by Federal Law 79 and other federal laws;

12) **inform** the employer's representative **of any personal interest** in the performance of official duties that may lead **to a conflict of interest**, and take measures to prevent such a conflict.

13) **notify** the employer's representative in writing of **any changes to the information contained in the questionnaire that have become known to him**, with the exception of information that has been changed by decision of the employer's representative.



Categories of civil service positions

Heads of positions

of heads and deputy heads of state bodies and their structural divisions, positions of heads and deputy heads of territorial bodies of federal executive bodies and their structural divisions, positions of heads and deputy heads of representative offices of state bodies and their structural divisions, filled for a specified term of office or without limitation of the term of office

Assistants (advisers)

positions established to assist persons replacing government positions, heads of government bodies, heads of territorial bodies of federal executive bodies and heads of representative offices of government bodies in the exercise of their powers and replaced for a specified period, limited by the term of office of the said persons or heads

Specialists

positions established for the professional provision of state bodies with the fulfillment of established tasks and functions and filled without limitation of the term of office

Support specialists

positions established for organizational, informational, documentary, financial, economic, business and other support of the activities of state bodies and filled without limitation of the term of office



Groups of civil service positions

1) **senior** civil service positions;

2) **the main** positions of the civil service;

3) **leading** positions in the civil service;

4) **senior** civil service positions;

5) **junior** civil service positions.

Relationships between categories and groups of civil service positions



	Руководители	Помощники (советники)	Специалисты	Обеспечивающие специалисты
Высшая группа	✓	✓	✓	
Главная группа	✓	✓	✓	
Ведущая группа	✓	✓	✓	✓
Старшая группа			✓	✓
Младшая группа				✓



Civil service class rank

Class ranks are awarded to civil servants **individually**, in **sequential order**, in accordance with the civil service **position held within the group of civil service positions**, and also taking into account the professional level, duration of state civil service of the Russian Federation in the previous class rank and in the civil service position held.

A class rank is awarded to a civil servant after **successful completion of a probationary period**, and if a probationary period was not established, then not earlier than **three months after appointment**.
civil servant for a civil service position.



Civil service class rank

<u>Job groups</u>	<u>Class ranks</u>
Highest	1) Active State Counselor of the Russian Federation – 1st class 2) Active State Counselor of the Russian Federation – 2nd class 3) Active State Counselor of the Russian Federation – 3rd class 1) State
Home	Counselor of the Russian Federation – 1st class 2) State Counselor of the Russian Federation – 2nd class 3) State Counselor of the Russian Federation
Presenter	– 3rd class 1) Counselor of the State Civil Service of the Russian Federation – 1st class 2) Counselor of the State Civil Service of the Russian Federation – 2nd class 3) Counselor of the State Civil Service of the Russian Federation – 3rd class
Elder	1) Referent of the state civil service of the Russian Federation – 1st class 2) Referent of the state civil service of the Russian Federation – 2nd class 3) Referent of the state civil service of the Russian Federation – 3rd class
The youngest	1) Secretary of the State Civil Service of the Russian Federation – 1st class 2) Secretary of the State Civil Service of the Russian Federation – 2nd class 3) Secretary of the State Civil Service of the Russian Federation – 3rd class

Shoulder straps of an active state adviser of the Russian Federation, 1st class



Погон

Минобороны России



Погон

Минтранс России



Погон

Росавтодор



Погон

Роспотребнадзор



Погон

Росприроднадзор



Погон

Россельхознадзор



Погон

Ростехнадзор



Погон

Ространснадзор





Shoulder straps of the Federal Tax Service of Russia

Погоны высшей и главной группы государственной гражданской службы ФНС России



Шеврон
ФНС России



Действительный
государственный советник
РФ 1 класса



Действительный
государственный советник
РФ 2 класса



Действительный
государственный советник
РФ 3 класса



Государственный
советник
РФ 1 класса



Государственный
советник
РФ 2 класса



Государственный
советник
РФ 3 класса



Shoulder straps of the Federal Tax Service of Russia

Погоны ведущей, старшей и младшей группы государственной гражданской службы ФНС России



Советник
государственной
гражданской
службы РФ 1
класса



Советник
государственной
гражданской
службы РФ 2
класса



Советник
государственной
гражданской
службы РФ 3
класса



Референт
государственной
гражданской
службы РФ 1
класса



Референт
государственной
гражданской
службы РФ 2
класса



Референт
государственной
гражданской
службы РФ 3
класса



Секретарь
государственной
гражданской
службы РФ 1
класса



Секретарь
государственной
гражданской
службы РФ 2
класса



Секретарь
государственной
гражданской
службы РФ 3
класса



Uniform of the Federal Tax Service of Russia



Source: Order of the Federal Tax Service of Russia dated March 21, 2007 No. MM-3-17/151 "On the uniform of employees of the Federal Tax Service who have been assigned "class ranks"



Shoulder straps of Rosselkhoznadzor

Погоны высшей и главной группы государственной гражданской службы Россельхознадзор



Шеврон
Россельхознадзор



Действительный
государственный советник
РФ 1 класса



Действительный
государственный советник
РФ 2 класса



Действительный
государственный советник
РФ 3 класса



Государственный
советник
РФ 1 класса



Государственный
советник
РФ 2 класса



Государственный
советник
РФ 3 класса



Shoulder straps of Rosselkhoz nadzor

Погоны ведущей, старшей и младшей группы государственной гражданской службы Россельхознадзор



Советник
государственной
гражданской службы РФ
1 класса



Советник
государственной
гражданской службы РФ
2 класса



Советник
государственной
гражданской службы РФ
3 класса



Референт
государственной
гражданской службы РФ
1 класса



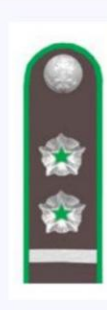
Референт
государственной
гражданской службы РФ
2 класса



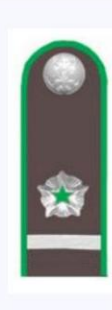
Референт
государственной
гражданской службы РФ
3 класса



Секретарь
государственной
гражданской службы РФ
1 класса



Секретарь
государственной
гражданской службы РФ
2 класса



Секретарь
государственной
гражданской службы РФ
3 класса



Rosselkhoznadzor uniform





Uniform of the Russian Ministry of Foreign Affairs



Source: Government Resolution of November 17, 2001 No. 799 "On the uniform of employees of the Ministry of Foreign Affairs of the Russian Federation, diplomatic missions and consular offices of the Russian Federation, representative offices of the Ministry of Foreign Affairs of the Russian Federation on the territory of the Russian Federation"

Office style clothing





Entry into civil service

The admission of a citizen to the civil service to fill a civil service position or the filling of another civil service position by a civil servant **is carried out based on the results of a competition**, unless otherwise provided by law.

The competition consists of **assessing the professional level** of applicants for a civil service position, checking their compliance with other established qualification requirements for filling a civil service position, and determining, based on the results of such assessment and verification, a citizen or civil servant from among the applicants for appointment to a civil service position.



Entry into civil service

The selection committee shall include **a representative of the employer** and/or **civil servants** authorized by the employer (including those from the civil service and personnel department and the department where the competition for the vacant civil service position is being held), as well as **independent experts**—representatives of scientific, educational, and other organizations who are specialists in the relevant fields and types of professional service activities of civil servants, on matters of personnel technologies, and civil service. **The number of independent experts must constitute at least one-quarter** of the total number of selection committee members .





The competition is not held:

- 1) when making appointments to civil service positions of the categories “managers” and “assistants (advisors)” filled **for a specific term** of office;
- 2) when appointed to civil service positions of the “managers” category, the appointment to and dismissal from which is carried out **by the President of the Russian Federation or the Government of the Russian Federation**;
- 3) when concluding **a fixed-term employment contract**;
- 4) when appointing a civil servant by way **of transfer to another** civil service position in the cases provided for in paragraphs 3–14 of Part 5 and paragraphs 3–5 of Part 6 of Article 28 of Federal Law No. 79-FZ of July 27, 2004;
- 5) when appointing a civil servant or citizen **included in the personnel reserve** for the civil service to a civil service position.



Personnel reserve

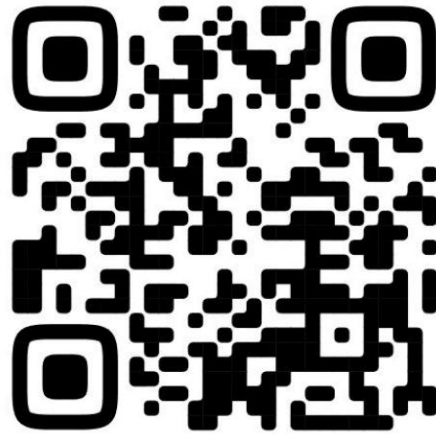


A database of highly professional and promising employees of federal executive bodies, state bodies of the constituent entities of the Russian Federation, as well as state corporations and organizations.

Civil service vacancies (competitions)



Госслужба



<https://gossluzhba.gov.ru>



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<https://t.me/RussianGoverCalls>